HEADNOTE

"1. To establish prior public use, it must be proven that all features of the invention were publicly disclosed and accessible to third parties before the priority date, with no confidentiality agreement in place. The party referring to the prior public use is responsible for providing the necessary evidence.
2. As the circumstances surrounding an alleged public prior use usually lie entirely within the control of the party invoking it, strict requirements must be imposed on the evidence provided. This must include full documentation of what was made available, to whom, when, and under what circumstances. In particular, it is essential to ensure that the sample material examined can be attributed with sufficient certainty to the product actually supplied (proof of identity).
3. The disclosure of a broader range of numbers does not, as a matter of course, preempt a narrower, claimed range falling within it to the detriment of novelty. This is particularly true where several parameters must be met cumulatively and the prior art does not consider some of the claimed ranges."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 3 805 415

METAL PLATE FOR MANUFACTURING DEPOSITION MASK, METHOD FOR MANUFACTURING METAL PLATE, DEPOSITION MASK AND METHOD FOR MANUFACTURING DEPOSITION MASK

KEYWORDS
Prior use in public
Burden of assertion and proof
Novelty examination in numerical ranges

SUMMARY
The Local Division in Düsseldorf ruled on an infringement action and counterclaim for revocation. The patent at issue relates to metal plates for manufacturing deposition masks. It also covers methods for manufacturing metal plates and deposition masks. According to the headnotes of the decision, prior public use must demonstrate that all invention features were publicly disclosed and accessible before the priority date. No confidentiality agreement may have been in place, and the party asserting prior public use bears the burden of proof. Furthermore, because the circumstances of alleged public prior use typically lie within the invoking party's control, strict evidentiary standards apply. Full documentation must show what was disclosed to whom and when. It must also show the circumstances under which disclosure occurred. In particular, examined samples must be reliably attributed to the actual supplied product. Additionally, a broader numerical range disclosed in the prior art does not automatically anticipate a narrower claimed range falling within it. This principle holds especially where multiple parameters must be satisfied cumulatively and the prior art does not address some of the claimed ranges.